

Republika ng Pilipinas
LUNGSOD NG DAVAO
Tanggapan ng Sangguniang Panlungsod
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EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG
PANLUNGSOD, CITY OF DAVAO, HELD ON FRIDAY, NOVEMBER 24, 1989.

PRESENT:

Vice Mayor Dominador B. Sufio, Jr., Presiding Officer
Councillor Bonifacio E. Militar
Councillor Alexis C. Almendras
Councillor Leonardo R. Avila, III
Councillor Milo G. Abellera
Councillor Aristee V.R. Albay
Councillor Gerardo C. Negrales
Councillor Valentine C. Banson
Councillor Diosdado A. Mahiyas
Councillor Tomas Monteverde, Jr.
Councillor Liberio V. Luman
Councillor Antonio S. Castillo
Councillor Danilo G. Dayanghirang
Councillor Jaime Q. Rodriguez
Councillor Senforiano B. Alterado
Councillor Cesar G. Robillo
Councillor Renato S. Bangoy
Councillor Agente P. Fuentes
Councillor Victorio S. Advincula
Councillor Shane L. Delor
Councillor Rafael A. Reyes, Jr.
Councillor Matute H. Pali
Councillor Nicamar A. Magno
Councillor Rosario K. Navarro, Sr.

ABSENT:

Councillor Luis G. Banguyan	- On official business
Councillor Antonio H. Vergara	-do-
Councillor Cerasen M. Malanyaen	-do-
Councillor Teofilo M. Venus	-do-
Councillor Guillermo G. Saldaña	-do-

RESOLUTION NO. 969

The proposed ordinance authored by Councillor Renato S. Bangoy prohibiting the posting of any kind of propaganda materials in City streets and any public place in the City of Davao was presented for consideration and appropriate action of the Body.

Councillor Victorio S. Advincula explained that it is the recognized aim of the City Government to promote the general welfare for better development and improvement of its citizenry. He also admitted that it is the constitutional right of some sectors of the citizenry to advertise and/or voice their rights. He also emphasized that it is within the power of the state to regulate such constitutional rights to meet the aim of promoting such general welfare clause.

After careful deliberation, on motion of Councillor Victorio S. Advincula, duly seconded by Councillors Gerardo C. Negrales, Senforiano B. Alterado, Antonio S. Castillo and Renato S. Bangoy,

Resolution No. 969
Ordinance No. 130
Series of 1989, Cont'd.:

and co-sponsored by Councilors Micanor A. Magno, Shane L. Dolor, Diosdado A. Mahipus, Bonifacio E. Militar, Tomas Monteverde, Jr., Gerardo C. Nograles, Rafael A. Reyes, Jr., Cesar G. Robillo, Jaime Q. Rodriguez, Alexis C. Almendras, Senforiano B. Alterado, Leonardo R. Avila, III, Renato S. Bangoy Danilo C. Dayanghirang and Liberio V. Lumain, it was

RESOLVED, AS IT IS HEREBY RESOLVED, To approve an Ordinance, entitled:

ORDINANCE NO. 130

AN ORDINANCE PROHIBITING THE PASTING OF ANY KIND OF PROPAGANDA MATERIALS IN CITY STREETS AND IN ANY PUBLIC PLACE IN THE CITY OF DAVAO.

Be it Ordained by the Sangguniang Panlungsod, City of Davao, that:

SECTION 1.- This Ordinance shall be known as " AN ORDINANCE PROHIBITING THE PASTING OF ANY KIND OF PROPAGANDA MATERIALS IN CITY STREETS AND ANY PUBLIC PLACE IN THE CITY OF DAVAO";

SECTION 2.- The provisions of this Ordinance shall be applicable within the entire territory and jurisdiction of the City of Davao;

SECTION 3.- It shall be unlawful for any person to paste and/or allow to be pasted in City Streets and any public place any kind of propaganda materials for the purpose of advertisement and/or airing grievances;

SECTION 4.- That any person found violating this Ordinance shall be fined an amount of P100.00 for the first offense; P150.00 for the second offense; and P200.00 for the succeeding offense and/or an imprisonment of six (6) months or both at the discretion of the Court;

SECTION 5.- Any existing Ordinance or parts thereof which are inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly;

SECTION 6.- This Ordinance shall take effect upon approval.

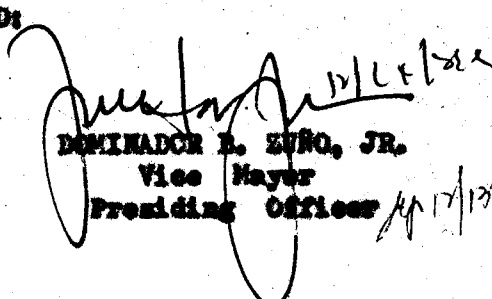
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Series of 1989, Cont'd.

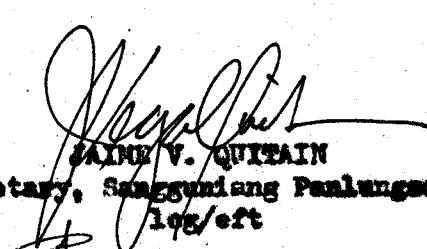
ENACTED: November 24, 1989.

CARRIED, By a majority of Twenty-one (21) affirmative votes.
Councilors Aristee V.R. Albay, Matute H. Peli and Nazario K. Navarro,
Sr. were out when the votes were taken.

APPROVED:


DOMINADOR E. ZURO, JR.
Vice Mayor
Presiding Officer

ATTESTED:


JAIME V. QUINTAN
Secretary, Sangguniang Panlungsod
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APPROVED: Dec 27, 1989.

(Sgt) RODRIGO R. DUTERTE
Mayor, City of Davao

ATTESTED:

Sgt BENJAMIN C. DE GUZMAN
City Administrator -
City Secretary - Designate